

Town of Moscow Solar Farm Ordinance

Synopsis: Ordinance to allow solar farms in rural areas subject to setback, height, screening, maintenance, safety and decommissioning requirements, subject to Planning Board approval.

Whereas the Town of Moscow deems it in the best interest of its citizens to enact a Solar Farm Ordinance.

Now Therefore the Town of Moscow does ordain as follows:

Section 1. Title

This Ordinance shall be known and may be cited as the "Solar Farm Ordinance".

Section 2. Purpose

The purpose of this Ordinance is to allow solar farms in rural areas subject to setback, size, height, screening, maintenance, safety, and decommissioning requirements, subject to Planning Board approval.

Section 3. Applicability

- A. This ordinance shall apply to all commercial solar installations within the Town of Moscow.
- B. This Ordinance shall authorize Ground Mounted Solar Energy Systems to be installed only in a rural area in the Town of Moscow.

Section 4. Definitions

The following words and terms shall mean the following for purposes of this section:

Abandonment: To give up, discontinue, or withdraw from. Any solar farm that ceases to produce energy on a continuous basis for 180 days will be considered abandoned.

Building: Any structure having a roof supported by columns or walls, and designated or intended for the shelter, support, enclosure or protection of persons, equipment, animals or chattels.

Decommissioning Plan: A document that details the planned shut down or removal of a solar farm from operation or usage, including abandonment as defined in this Ordinance.

Fence: A continuous barrier extending from the surface of the ground to a uniform height (to be established through the special use permit process), constructed of steel, or other metal, or any substance of a similar nature and strength.

Gate: A door or other device attached to a fence which, when opened, provides a means of ingress and egress of person and things for which it was intended, and which, when closed, forms a continuous barrier as a part of the fence to which it is attached.

Ground Mounted Solar Energy System: for purposes of this Ordinance: (a) a solar energy system that is structurally mounted to the ground; 9b) has a physical size based on total airspace projected over the ground is greater than 25 acres; and (c) that is not directly connected to a Residential Structure.

Residence: A building used as a dwelling for one or more families or persons.

Solar Energy System (SES): a facility whose primary purpose is to harvest energy by transforming solar energy into another form of energy or transferring heat from a collector to another medium using mechanical, electrical, or chemical means.

Section 5. Applications and Permit Fee

The application fee for a solar energy system is \$2,500.

Section 6. Specific Application Requirements

An application for a Solar Energy System (SES) Permit must also include the following, at the cost of the applicant:

1. A description of the owner of the SES, the operator if different, and detail of qualifications and track record to run the facility;
2. If the operator will be leasing the land, a copy of the agreement (minus financial compensation) clearly outlining the relationship inclusive of the rights and responsibilities of the operator, landowner and any other responsible party with regard to the SES and the life of the agreement;
3. A description of how and to whom the energy produced will be sold;
4. A copy of the agreement and schematic details of the connection arrangement with the transmission system (most likely Central Maine Power), clearly indicating which party is responsible for various requirements and how they will be operated and maintained;
5. The layout, design and installation shall conform to applicable industry standards, such as those of the American National Standards (ANSI), Underwriters Laboratories (UL), the American Society for Testing and Materials (ASTM), Institute of Electrical and Electronics Engineers (IEEE), Solar Rating and Certification Corporation (SRCC), Electrical Testing Laboratory (ETL), Florida Solar Energy Center (FSEC) or similar certifying organizations, and shall comply with local ordinances, and with all other applicable fire and life safety requirements. The manufacturer specifications for the key components of the system shall be submitted as part of the application;
6. A description of the panels to be installed, including make and model, and associated major system components;
7. A construction plan and timeline, identifying known contractors, site control and anticipated on-line date;

8. An operations and maintenance plan, including site control and the projected operating life of the system; such a plan shall include measures for maintaining safe access to the installation, stormwater controls, as well as general procedures for operational maintenance of the installation. Additionally, such plans shall include efforts to promote beneficial flora and fauna (e.g. honeybees, butterflies, etc.) as well as a commitment to not using pest-control substances (e.g. pesticides, herbicides, fungicides, and/or insecticides).
9. Escrow amount for decommissioning will be determined during the application phase.

Section 7. Dimensional Requirements

- A. Ground Mounted Solar Energy Systems will not exceed 14 feet in height.
- B. Minimum ~~foot~~ setback shall be 1,000 feet from any dwelling.
- C. Lot coverage for Ground Mounted Solar Energy Systems shall be calculated based on the area of the supporting structure that is in contact with the ground and not the area of the panels as long as the area under the panels remains vegetated.
- D. Residential solar systems of less than 40 kw are exempt from this Ordinance.

Section 8. Screening, Security, Maintenance and Regulatory Compliance

- A. Subject to the approval of the Moscow Planning Board, the lots on which Ground Mounted Solar Energy Systems are located shall be buffered from roads and residences by plantings and berms, and natural topographical features.
- B. Subject to the approval of the Moscow Planning Board, the lots on which Ground Mounted Solar Energy Systems are located shall be protected by a perimeter fence. One or more signs shall be affixed to the fence identifying the owner of the facility and emergency contact information.
- C. For Purposes of emergency services, the owner or operator of a Ground Mounted Solar Energy Systems shall provide a copy of the project summary, electrical schematic, and site plan to the Moscow Fire Chief. Upon request, the owner or operator shall cooperate with the Fire Department in developing an Emergency Response Plan. All means of shutting down the system shall be clearly marked on the plan. The owner or operator shall identify a responsible person to the Code Enforcement Officer and the Fire Chief for public inquiries throughout the life of the installation.
- D. The owner or operator of a Ground Mounted Solar Energy System shall maintain the facility in good condition. Maintenance shall include but not be limited to, painting, structural repairs, vegetation control and integrity of security measures. Site access shall be maintained to a level acceptable to the Moscow Fire Chief. The owner or operator shall be responsible for the cost of maintaining the access road(s) unless the road(s) is accepted as a public way.
- E. The owner or operator of a Ground Mounted Solar Energy System shall build and maintain it in compliance with all relevant Federal, State and Local Laws, Regulations and Ordinances.

- F. All commercial solar farms must be of a taxable nature and subject to real estate and personal property taxes.

Section 9. Violations and Enforcement

A. Violation

Any construction of buildings or structures, and any use of land, buildings or structures except in conformance with the provisions of this Ordinance shall be deemed a violation of this Ordinance and a nuisance.

B. Code Enforcement Officer

It shall be the duty of the Code Enforcement Officer to enforce the provisions of this Ordinance. If the Code Enforcement Officer shall find that any provision of this Ordinance is being violated, he/she shall notify in writing the person responsible for such violation, indicating the nature of the violation and ordering the action necessary to correct the violation, including discontinuance of illegal use of land, buildings, structures, and abatement of nuisance conditions. A copy of such notices shall be maintained as a permanent record.

C. Legal Actions

When the above does not result in the correction or abatement of the violation or nuisance condition, the Selectmen, upon notice from the Code Enforcement officer are hereby authorized to institute any and all actions and proceedings, either legal or equitable, including seeking injunctions of violations and the imposition of fines, that may be appropriate or necessary to enforce the provisions of the Ordinance in the name of the municipality.

D. Penalties

Any person or persons who violate any provision(s) of this Ordinance or any permit issued under the provisions of this Ordinance, shall be subject to civil penalties in accordance with the provisions of Title 30-A §4452.

E. Contractor Liability

Any contractor involved in activity regulated by the provisions of this Ordinance may be held liable for violating the Ordinance if the necessary permits for said activity have not been obtained or if work performed by the contractor does not conform to all conditions of approval of the permit or the terms of the Ordinance.

F. Appeals

The Board of Appeals shall hear appeals from final decisions of the Code Enforcement Officer and Planning Board on decisions to grant or deny permits or approvals pursuant to this Ordinance in accordance with the Town's Board of Appeals Ordinance. Appeals shall be filed within 30 days of the Code Enforcement Officer or Planning Board's official, written decision on the application.

Section 10. Performance Guarantee

- A. Any Ground Mounted Solar Energy System that has reached the end of its useful life, ceases to generate power or has been abandoned shall be removed pursuant to a plan approved by the Moscow Planning Board during the application process. The owner or

operator shall physically remove the installation no more than 180 days after the date of discontinued operations. The owner or operator shall notify the Code Enforcement Officer by certified mail, return receipt requested, of the proposed date of the discontinued operations and plans for removal.

- B. Decommissioning shall consist of: (1) physical removal of all solar energy systems, structures, equipment, security barriers and transmission lines from the site; (2) disposal of all solid and hazardous waste in accordance with Local, State and Federal waste disposal regulations; and (3) stabilize or re-vegetation of the site as necessary to minimize erosion. The Code Enforcement Officer may allow the owner or operator to leave landscaping or designated below-grade foundations to minimize erosion and disruptions to vegetation.
- C. Absent a notice of a proposed date of decommissioning or written notice of extenuating circumstances, Ground Mounted Solar Energy Systems shall be considered abandoned when it fails to generate electricity for more than 180 days without having first obtained the written consent of the Code Enforcement Officer. Determination of abandonment shall be made by the Code Enforcement Officer.
- D. If the owner or operator of a Ground Mounted Solar Energy System fails to remove the installation in accordance with the requirements of this section within 180 days of abandonment or the proposed date of decommissioning, the Town of Moscow retains the right to use the performance guarantee and any and all legal or available means necessary to cause an abandoned, hazardous or decommissioned solar energy system to be removed.

Section 11. Authority

- A. This Ordinance is adopted pursuant to the enabling provisions of Article VIII, Part 2, Section 1 of the Maine Constitution, provisions of 30-A M.R.S. §3001, *Ordinance Power*, and the provisions of 30-A, M.R. S. §4352, *Zoning*.
- B. To the extent that any provision of this Ordinance is deemed invalid by a court of competent jurisdiction, such provision shall be removed from the Ordinance and the balance of the Ordinance shall remain valid.

Section 12. Effective Date and Duration

This Ordinance shall take effect upon enactment by the Town of Moscow unless otherwise provided and shall remain in effect until it is amended or repealed.

Section 13. Enforcement Violations and Penalties

This Ordinance shall be enforced by the municipal officers or their designee. Violation of this Ordinance shall be subject to the enforcement and penalty provisions of 30-A, M.R.S. §4452, *Enforcement of Land Use Laws and Ordinances*.